

Senate Bill No. 8—Select Committee
on Jobs and Economy

CHAPTER.....

AN ACT relating to employment; revising provisions relating to the compensation of employees; and providing other matters properly relating thereto.

Legislative Counsel's Digest:

Existing law establishes requirements relating to compensation, wages and hours of employees. (Chapter 608 of NRS) Existing state law requires, with certain exceptions that are similar to certain exceptions found in federal law and regulations relating to the federal Fair Labor Standards Act of 1938, an employer to pay compensation to an employee for each hour the employee works. (NRS 608.016, 608.0195, 608.215; 29 U.S.C. § 213; 29 C.F.R. §§ 552.102, 785.22) The federal Portal-to-Portal Act of 1947 provides that certain activities are not compensable under the federal Fair Labor Standards Act, including those which are preliminary to or postliminary to the principal activity or activities which the employee is engaged to perform. (29 U.S.C. §§ 252, 254) In 2025, the Nevada Supreme Court held that the Nevada Legislature has not incorporated those additional exceptions from the federal Portal-to-Portal Act into state law. (*Amazon.com Servs., LLC v. Malloy*, 141 Nev. Adv. Op. 50, 2025 WL 3032215 (2025)) **Section 1** of this bill adds to state law certain additional exclusions and exceptions relating to compensable activities and working time from the federal Portal-to-Portal Act and federal Fair Labor Standards Act including: (1) relief from certain claims, liability and punishment under federal law; (2) waiting time; (3) preparatory and concluding activities; (4) lectures, meetings and training programs; and (5) travel time. (29 U.S.C. §§ 252, 254; 29 C.F.R. §§ 785.14-785.17, 785.26-785.41) **Section 5** of this bill provides that the amendatory provisions of **section 1** expire by limitation on October 31, 2029.

Existing law requires, with certain exceptions, that employees be paid overtime for certain hours. (NRS 608.018) **Section 2** of this bill makes certain calculations relating to overtime subject to federal regulations which relate to principles for computing overtime based on the regular rate of pay under the Fair Labor Standards Act. (29 C.F.R. §§ 778.107-778.503)

EXPLANATION – Matter in *bolded italics* is new; matter between brackets ~~omitted material~~ is material to be omitted.

THE PEOPLE OF THE STATE OF NEVADA, REPRESENTED IN
SENATE AND ASSEMBLY, DO ENACT AS FOLLOWS:

Section 1. NRS 608.016 is hereby amended to read as follows:
608.016 Except as otherwise provided in NRS 608.0195 and 608.215, *and excluding from hours of work such time excluded by sections 2 and 4 of the Portal-to-Portal Act of 1947, as amended, 29 U.S.C. §§ 252 and 254, and the following specific federal regulations adopted under the Fair Labor Standards Act of 1938, 29 U.S.C. §§ 201 et seq., 29 C.F.R. §§ 785.14 to 785.17, inclusive, 785.26, 785.27 to 785.32, inclusive, and 785.33 to 785.41,*



inclusive, an employer shall pay to the employee wages for each hour the employee works. An employer shall not require an employee to work without wages during a trial or break-in period ~~or when an employee is donning or doffing a uniform or personal protective equipment where employees are not permitted to bring or wear uniforms or personal protective equipment from home.~~

Sec. 2. NRS 608.018 is hereby amended to read as follows:

608.018 1. An employer shall pay 1 1/2 times an employee's regular wage rate whenever an employee who receives compensation for employment at a rate less than 1 1/2 times the minimum rate set forth in NRS 608.250 works:

(a) More than 40 hours in any scheduled week of work; or

(b) More than 8 hours in any workday unless by mutual agreement the employee works a scheduled 10 hours per day for 4 calendar days within any scheduled week of work.

2. An employer shall pay 1 1/2 times an employee's regular wage rate whenever an employee who receives compensation for employment at a rate not less than 1 1/2 times the minimum rate set forth in NRS 608.250 works more than 40 hours in any scheduled week of work. *Such a calculation is subject to the following federal regulations which relate to principles for computing overtime pay based on the regular rate, adopted under the Fair Labor Standards Act of 1938, 29 U.S.C. §§ 201 et seq., 29 C.F.R. §§ 778.107 to 778.122, inclusive, 778.200 to 778.225, inclusive, 778.300 to 778.333, inclusive, 778.400 to 778.421, inclusive, and 778.500 to 778.503, inclusive.*

3. The provisions of subsections 1 and 2 do not apply to:

(a) Employees who are not covered by the minimum wage provisions of Section 16 of Article 15 of the Nevada Constitution;

(b) Outside buyers;

(c) Employees in a retail or service business if their regular rate is more than 1 1/2 times the minimum wage, and more than half their compensation for a representative period comes from commissions on goods or services, with the representative period being, to the extent allowed pursuant to federal law, not less than 1 month;

(d) Employees who are employed in bona fide executive, administrative or professional capacities;

(e) Employees covered by collective bargaining agreements which provide otherwise for overtime;

(f) Drivers, drivers' helpers, loaders and mechanics for motor carriers subject to the Motor Carrier Act of 1935, as amended;

(g) Employees of a railroad;



- (h) Employees of a carrier by air;
- (i) Drivers or drivers' helpers making local deliveries and paid on a trip-rate basis or other delivery payment plan;
- (j) Drivers of taxicabs or limousines;
- (k) Agricultural employees;
- (l) Employees of business enterprises having a gross sales volume of less than \$250,000 per year;
- (m) Any salesperson or mechanic primarily engaged in selling or servicing automobiles, trucks or farm equipment;
- (n) A mechanic or worker for any hours to which the provisions of subsection 3 or 4 of NRS 338.020 apply;
- (o) A domestic worker who resides in the household where he or she works if the domestic worker and his or her employer agree in writing to exempt the domestic worker from the requirements of subsections 1 and 2; and
- (p) A domestic service employee who resides in the household where he or she works if the domestic service employee and his or her employer agree in writing to exempt the domestic service employee from the requirements of subsections 1 and 2.

4. Any regulation of the Director of the Department of Human Services concerning the payment of overtime to a home care employee adopted pursuant to NRS 608.670 prevails over the general provisions of this section.

5. As used in this section:

(a) "Domestic worker" has the meaning ascribed to it in NRS 613.620.

(b) "Home care employee" has the meaning ascribed to it in NRS 608.530.

Sec. 3. 1. The amendatory provisions of section 1 of this act apply to any action or proceeding that is pending as of the effective date of this act or filed on or after the effective date of this act, including, without limitation, such an action or proceeding where an act, omission or underlying event giving rise to the action or proceeding occurred before the effective date of this act or on or after the effective date of this act and not later than October 31, 2029.

2. The amendatory provisions of section 2 of this act apply to any action or proceeding that is pending as of the effective date of this act or filed on or after the effective date of this act, including, without limitation, such an action or proceeding where an act, omission or underlying event giving rise to the action or proceeding occurred before the effective date of this act.



Sec. 4. Notwithstanding the provisions of NRS 218D.430 and 218D.435, a committee may vote on this act before the expiration of the period prescribed for the return of a fiscal note in NRS 218D.475. This section applies retroactively from and after November 13, 2025.

Sec. 5. 1. This act becomes effective upon passage and approval.

2. Section 1 of this act expires by limitation on October 31, 2029.

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